Safety is Subjective: Using Consent as a Lens to Define Safety and Mitigate Harm

Position paper for CSCW 2024 Workshop: What is Safety?

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1 Introduction

In this position paper we propose consent (voluntary agreement) as a lens to 1) acknowledge and embrace subjectivity in what behaviors constitute harm and 2) define safety in computer-mediated communication as the *presence* of consent rather than the *absence* of harm.

Keeping people safe from interpersonal harm online is difficult for a variety of reasons, one being that defining "harm" is challenging given the diverse perspectives, opinions, and goals of users on social platforms. Online platforms often implement approaches to harm mitigation that necessitate objective or "one size fits all" definitions of what qualifies as harm, such as content moderation policies. This can be challenging, if not futile, because users may disagree on what behaviors are harmful and acceptable. For instance, receiving a nude image could be harmful to one user, but desired by another. This subjectivity is further complicated by varying affordances for interpersonal communication in emerging social platforms such as social VR.

Through a consent lens, challenges with objective or universal definitions of harm are avoided by defining harm as nonconsensual behavior (behavior that is unwanted or not agreed to by the recipient). This definition foregrounds subjectivity in harmful experiences and centers the recipient of a given behavior as the ultimate determinant of whether the behavior is harmful. Conversely, a consent lens can also be used to define safety not as the mere absence of harm (nonconsensual acts), but as the presence of mutual consent between users in a given interaction.

Defining harm and safety through the lens of consent necessitates a rethinking of social platform design to enable the presence of consent, or consent exchange, between users. We thus perceive *safety by design* as necessitating the formal and consistent incorporation of consent mechanics on social platforms: tools for users to express, deny, and receive consent to interpersonal behavior. We draw attention to two related design challenges here: 1) determining how to provide consistent affordances for consent exchange in the diverse types of interactions users may find themselves in online, and 2) selecting a consent model, or prescriptive rules for how consent exchange "should" happen between users. To the latter, affirmative consent is one of the most widely recommended consent models, necessitating that consent be explicitly asked for and received before engaging in an interaction. It is often defined by qualities such as Freely given, Revertible, Informed, Energetic, Specific) [2].

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Computer-mediated communication affords a wide range of opportunities to support consent exchange beyond that typical in physical world encounters, during which consent exchange is usually limited to verbal exchange ("yes means yes") and interpretation of nonverbal cues/body language. Our lab is actively exploring the design of interpersonal consent mechanics in online dating contexts [3, 4] with a range of contemporary design materials including VR, AI, and social robots [1]. Below we provide two illustrative examples from our prior participatory design studies with diverse user demographics, which are intended to stimulate discussion and imagination of how consent exchange could be formally incorporated into interactions that occur fully online and in face-to-face settings through the use of augmented reality, wearable devices, and so on. Figure 1 (from [3]) demonstrates explicit boundary setting as a form of consent to personal space and direct interaction. Figure 2 (from [4]) depicts the use augmented reality and smartwatches to rapidly convey consent information during physical sexual activity.

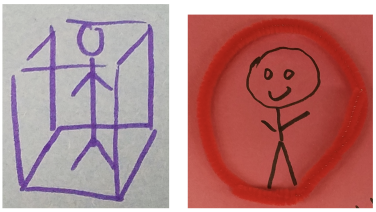


Fig. 1. Figure 1: Consent to personal space through boundary setting in VR



Fig. 2. Figure 2: Revoking consent to physical sexual acts

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